

Serious Incident Report no. 14036/2021

Report date and time (UTC)	2021-10-25 [REDACTED] Sensitive operational information x2
Last modification date and time (UTC)	2022-12-19 [REDACTED]
Reporting entity/function	[REDACTED] EVROS Human resources
SIR Status	Closed
Workflow Status	Processed
SIR Category	1 - Situations of potential violations of Fundamental Rights or international protection obligations
Subject	Situations of potential violations of fundamental rights or international protection obligations - Illegal entry of ten (10) illegal migrants from Bulgaria
Joint operation	JO FOA Land 2021
[REDACTED] incident number	Reporting tools
Original source of information	Hellenic police authorities from Orestiada Police Directorate
FX SI Handler	HoO.FRO
Frontex resources involved	No
Use of force	No
Incident dates (UTC)	2021-10-01 [REDACTED] Sensitive operational information
Location of the incident	Ormenio, Evros, Greece
Latitude	[REDACTED]
Longitude	[REDACTED] Operational area
Location details	
Reference to the operational area	No
Type of resources / involvement	
Dead persons	
Injured persons	
Missing persons	

Details

[Sensitive operational information](#)

Operational area	On 01/10/2021 at [REDACTED], in the area of Ormenio village, Greek Police officers from [REDACTED] apprehended ten irregular migrants of [REDACTED] nationality ([REDACTED]). All of them stated: Personal data x2
Information/Allegations	i) that they were allegedly victims of robbery and violent deportation from Bulgaria to Greece, by the Bulgarian police authorities; (ii) that they were reportedly forced to leave their clothes, shoes and telephones in Bulgaria. Human resources x2
Measures/Actions taken	The [REDACTED] with the [REDACTED] received an urgent call to conduct an interview with the migrants at [REDACTED] Operational area x2 The criminal proceedings are currently ongoing and conducted by [REDACTED]
Assessment	FRO considers that the alleged facts could amount to serious breaches of the right to life, integrity, asylum, human dignity, the prohibition of torture and inhuman and degrading treatment, and of collective expulsion. Furthermore, FRO does not consider the information provided by the Bulgarian authorities to be sufficient to corroborate or refute the alleged facts of the case provided via present SIR.
Personal Data	

[Reporting tools](#)

Final Report

Key points	
Description of the event - Timeline	
Information collected - Contributors/Entities consulted - Follow-up	
Assessment	
Final conclusion - Proposals - Lessons learned	Having in mind the statement of the Bulgarian authorities and that no additional information or evidence was obtained from the Bulgarian entities to corroborate the alleged facts, FRO recommends the closure of the SIR. Despite the fact that according to the response from the national authorities, there was no evidence or proof that allegations from the incident are grounded, FRO would like to emphasize potential risks in incidents of such nature. The allegations relate to police conduct that potentially amounts to degrading treatment of persons in a vulnerable situation, which is specifically prohibited by Article 4 of the EU Charter. As defined by the European Court of Human Rights (hereinafter "ECtHR"), degrading treatment is an ill-treatment which arouses in victims' "feelings of fear, anguish and inferiority capable of humiliating and debasing them and possibly breaking their physical or moral resistance". Such police alleged acts like humiliating, robbing, threatening, directly interfere with the right to human dignity which as set by Article 1 of the EU Charter, must be respected, and protected. The incident also involves allegations on so called „pushback” allegedly conducted by the Bulgarian police without taking into consideration the personal circumstances of people being returned. Such law enforcement action may amount to collective expulsion, which Article 19 of the EU Charter explicitly prohibits. The ECtHR ruled in several cases that the lack of specific examination of each individual situation in case of removal of aliens might amount to a collective expulsion. The ECtHR has reiterated that collective expulsion is “any measure compelling aliens, as a group, to leave a country, except where such a measure was taken on the basis of a reasonable and objective examination of the particular case of each individual in the group”. The lack of individual assessment, which seems to be applicable in this case, is at odds with the prohibition of refoulement. Article 19 of the EU Charter, specifically prohibits collective expulsions. Furthermore, in the course of aforementioned police’s actions, it is clear that the persons subjected to these actions did not have access to an effective remedy when being returned. As provided by Article 47 of the EU Charter, the persons whose rights and freedoms guaranteed by law of the EU are violated have the right to an effective remedy. Last but not at least, FRO underlines the significance of the prompt and efficient exchange of information and follow-up among involved national stakeholders and Frontex, in particular SI-Handler. In view of the above, FRO recommends the following actions: For Bulgarian authorities: 1. To continuously train and sensitise police officers to the need to assess and act in accordance with fundamental rights standards, including use of force. 2. To ensure application of safeguards and provision of assistance within the limits of what is possible as soon as migrants are detected. For Frontex: Reporting tools 1. For the [REDACTED] to ensure that the risks outlined

in this, and other SIRs related to Bulgaria as a host Member State, are reflected in future operation planning and implementation.

2. To encourage as well to protect Frontex operational staff reporting Serious Incidents to FRO.

Against this backdrop, the Fundamental Rights Office will evaluate the possibility for a longer-term deployment of Fundamental Rights Monitors to the border region of Bulgaria to address heightened fundamental rights risks specific to this region.

Out of scope of the application